

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
MAXIM BANGIYEV,

Plaintiff,

-against-

Index No.:

PLAINTIFF DESIGNATES QUEENS
COUNTY AS THE PLACE OF THE
TRIAL**SUMMONS**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. AKMAL
ASADI (TAX ID #955729), Individually and
in his Official Capacity, and P.O.'s "JOHN
DOE" #1-5, Individually and in their Official
Capacity (the name John Doe being fictitious, as the
True names are presently unknown),THE BASIS OF VENUE IS:
CPLR §504(3)Defendants.
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not entered with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 8, 2020

Yours, etc.

**LAW OFFICE OF GLENN M. RACE**By: Glenn M. Race, Esq.
954 Lexington Avenue, #331
New York, New York 10021
Attorneys for Plaintiff
MAXIM BANGIYEV
P: 888.875.1059
F: 888.887.0073

Address of Defendants:

THE CITY OF NEW YORK and THE NEW YORK
CITY POLICE DEPARTMENT
c/o Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. AKMAL ASADI
(Tax ID No.: 955729)
NYC Police Department, 107 Precinct
71-01 Parsons Blvd.
Queens, New York 11365

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
MAXIM BANGIYEV,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. AKMAL
ASADI (TAX ID #955729), Individually and
in his Official Capacity, and P.O.'s "JOHN
DOE" #1-5, Individually and in their Official
Capacity (the name John Doe being fictitious, as the
True names are presently unknown),

Defendants.
-----X

Plaintiff, MAXIM BANGIYEV, by his attorneys, THE LAW OFFICE OF GLENN
M. RACE, as and for his Complaint against the Defendants, alleges as follows:

1. At all times hereinafter mentioned, Plaintiff, MAXIM BANGIYEV, was an individual residing in the County of Queens, City and State of New York.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was a municipal corporation duly created and existing by and under the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, maintained the defendant, THE NEW YORK CITY POLICE DEPARTMENT (Hereinafter, "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal

Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, **P.O. AKMAL ASADI (TAX ID #955729)** and **P.O.s "JOHN DOE" #s1-5 (fictitious names)**, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment with Defendants, **THE CITY OF NEW YORK** and **NYPD**.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment with Defendants, **THE CITY OF NEW YORK** and **NYPD**.

8. That on or about October 28, 2019, Plaintiff, **MAXIM BANGIYEV**, was lawfully present at 80-90 Dumfries Place, in the County of Queens, City and State of New York.

9. That at the aforesaid time and location, **P.O. AKMAL ASADI (TAX ID #955729)** (Hereinafter, "**P.O. ASADI**") of the **NYPD**, as well as other **NYPD** officers whose identities are unknown at this time, approached Plaintiff and unlawfully detained him whilst knowing he committed no crime.

10. That at all times herein mentioned, **P.O. ASADI** and/or other **NYPD** officers then informed Plaintiff that he was being placed under arrest for allegedly violating an order of protection that enjoined him from contact with Natalya Bangiyev.

11. That at all times herein mentioned and prior to placing Plaintiff under arrest, **P.O. ASADI** possessed knowledge and/or information that the Order of Protection that Plaintiff was alleged to have violated was no longer in effect at the time of Plaintiff's detention and/or arrest.

12. That at all times herein mentioned and prior to placing Plaintiff under arrest, **P.O. ASADI** was presented with an Order of Dismissal, dismissing the aforesaid Order of Protection that was the basis for the unlawful detention and subsequent arrest of Plaintiff, which said Order of Dismissal had been issued in New York Family Court, Queens County by the Honorable Mildred T. Negron.

13. That at all times herein mentioned, **P.O. ASADI** and/or other **NYPD** Officers disregarded the clear evidence that the Order of Protection which was allegedly violated by Plaintiff was no longer in effect and thereafter proceeded to arrest Plaintiff under arrest number Q19639715.

14. That at no time on October 28, 2019, did Defendants possess probable cause to arrest Plaintiff.

15. That at no time on October 28, 2019, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.

16. Said detention and/or search and/or arrest of Plaintiff, was unlawful and/or without a warrant and/or without justification and without probable cause.

17. That at the aforementioned time and location, **P.O. ASADI** and other **NYPD** officers proceeded to place Plaintiff in handcuffs with his arms tightly behind his back.

18. That at the aforementioned time and place, **P.O. ASADI** and other **NYPD** officers proceeded to search Plaintiff's person and/or belongings.

19. That at the aforementioned time and place, **P.O. ASADI** and other **NYPD** officers transported Plaintiff to the 107th Precinct of the NYPD, where he was confined in a cell and/or handcuffed against his will.

20. That on or about October 29, 2019, Plaintiff was transported to Central Booking where he was separated from his family and continued to be confined and jailed in a cell against his will.

21. That, on or about October 29, 2019 and pursuant to the aforesaid arrest of Plaintiff, **P.O. ASADI** communicated and/or met with the prosecutor(s) of the Queens County District Attorney's Office.

22. That on or about October 29, 2019, **P.O. ASADI** swore, under the penalty of perjury, that claimant had committed the crime of Criminal Contempt in the Second Degree, New York Penal Law §215.50(3), despite possessing clear evidence to the contrary.

23. That on or about October 29, 2019, **P.O. ASADI**, along with the prosecutor(s) at the Queens County District Attorney's Office drafted, executed and/or filed said complaint charging claimant with Penal Law § 215.50(3), a misdemeanor, despite possessing clear evidence that the Order of Protection under docket number 0-21346 of the New York Family Court, referenced in the criminal complaint, was not valid, nor was it in effect at the time of Plaintiff's arrest.

24. That on or about October 29, 2019, **P.O. ASADI**, along with the prosecutor(s) at the Queens County District Attorney's Office drafted, executed and/or filed said complaint charging claimant with Penal Law §240.26(1), a violation, despite having neither a factual basis

for said charge, nor setting forth factual allegations in the accusatory instrument supporting said charge.

25. That on or about October 29, 2019, **P.O. ASADI** falsely alleged in the criminal complaint that the Order of Protection claimant was said to have violated was an Order issued on October 24, 2019, under Family Court docket number 0-21346 and in effect until October 28, 2019.

26. That on or about October 29, 2019, Plaintiff appeared for an arraignment in open Court and was formally charged under Docket No. CR-033159QN with the following violations of the New York State Penal Law: §215.50-3 (A Misdemeanor)-Criminal Contempt in the Second Degree and Penal Law §240.26-1 (Violation)- Harassment in the Second Degree.

27. That Plaintiff was thereafter prosecuted by the Queens County District Attorney's Office, whereby Plaintiff was caused to appear in Court on four (4) separate Court appearances after his arraignment, despite there being no evidence to substantiate the charges against him.

28. That on or about December 20, 2019, the aforementioned complaint and all charges contained therein were subsequently dismissed against Plaintiff.

28. That as a result of his unlawful arrest, Plaintiff, **MAXIM BANGIYEV**, was confined to a jail cell and made multiple Court appearances in connection with these charges before all charges against him were ultimately dismissed,

29. That as a result of the foregoing, Plaintiff, **MAXIM BANGIYEV**, sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation and deprivation of his constitutional rights.

30. On January 23, 2020, Plaintiff, **MAXIM BANGIYEV**, duly served in writing upon the Office of the New York City Comptroller, his Notice of Claim, as hereinafter described and set forth and upon which this action is founded for adjustment.

31. That the aforesaid Notice of Claim set forth the names and addresses of the plaintiff and his attorneys; the nature of the claim; the time, place and manner in which it arose; and the items of damage and injuries claimed to have been sustained.

32. That after the service of the aforesaid Notice of Claim, Plaintiff, **MAXIM BANGIYEV**, complied with Section 50(h) of the Municipal Law by appearing and giving testimony on May 26, 2020, as noticed by the attorneys representing Defendant, **THE CITY OF NEW YORK** and **NYPD**.

33. That, to date, the Office of the New York City Comptroller has wholly neglected and refused to make an adjustment or payment of the claim for more than thirty days after its presentation.

34. This action was commenced within one year and ninety days after the cause of action accrued.

FOR A FIRST CAUSE OF ACTION- FALSE ARREST

35. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "34" with the same force and effect as if fully set forth herein.

36. As a result of the aforesaid conduct by the defendants, Plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege or consent.

37. By reason of such false arrest and confinement, Plaintiff's liberty was restricted for an extended period of time, he suffered emotional distress, mental anguish, as well as

psychological injuries, humiliation, indignity, shame, damage to his reputation and loss of liberty and property.

AS AND FOR A SECOND CAUSE OF ACTION—MALICIOUS PROSECUTION

38. Plaintiff repeats and realleges each and every allegation set forth in paragraphs “1” through “37” with the same force and effect as if fully set forth at length herein.

39. After Plaintiff’s unlawful arrest, the defendant officers, without probable cause and with actual malice, caused a criminal action to be commenced against the plaintiff under Queens County Criminal Court docket number CR-033159QN.

40. Defendants misrepresented and falsified evidence before the Queens County District Attorney’s Office.

41. Defendants did not make a complete and full statement of facts to the District Attorney’s Office.

42. Defendants withheld exculpatory evidence from the District Attorney’s Office.

43. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

44. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

45. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

46. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

47. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.

48. Defendants acted with malice in continuing criminal proceedings against Plaintiff.

49. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

50. All charges against Plaintiff were dismissed on or about December 20, 2019.

51. By reason of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he suffered emotional distress, mental anguish as well as psychological injuries, humiliation, indignity, shame, damage to his reputation and loss of liberty.

AS AND FOR A THIRD CAUSE OF ACTION—NEGLIGENT HIRING

52. Plaintiff repeats and realleges each and every allegation set forth in paragraphs "1" through "51" with the same force and effect as if fully set forth at length herein.

53. The aforesaid false arrest and malicious presentation occurred due to the negligence of the defendants in failing to properly hire, train, supervise, and/or discipline the officers of the NYPD.

AS AND FOR A FOURTH CAUSE OF ACTION—VIOLATION OF CIVIL RIGHTS

54. Plaintiff repeats and realleges each and every allegation set forth in paragraphs "1" through "53" with the same force and effect as if fully set forth at length herein.

55. Defendants, **THE CITY OF NEW YORK** and **NYPD** have negligently failed to train, supervise and discipline their agents, servants and/or employees with regard to proper constitutional and statutory limits on their exercise of authority, proper procedures for performing their duties and proper methods of interacting with members of the public, including plaintiff.

56. This negligence by Defendants, **THE CITY OF NEW YORK** and **NYPD**, directly led to the events described herein.

57. By reason of the foregoing, defendants deprived the plaintiff of rights, privileges and immunities as granted under the United States Constitution, Amendments One, Four, and Fourteen, the New York State Constitution, and 42 U.S.C. § 1981, 1983, 1985, and 1986 and 1988; the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the agents, servants and/or employees of the NYPD.

58. After Plaintiff was falsely arrested and confined as described above, he was subject to unlawful searches of his person and his possessions.

59. The actions of defendants heretofore described constitute assault; use of excessive force; false arrest; false imprisonment, malicious prosecution, negligent and intentional infliction of emotional distress; unreasonable search and seizure of plaintiff's person and property, and negligent hiring and training, and supervision and retention of the New York City Police Department and its officers all of which deprived the plaintiff of the rights, privileges and immunities granted under the United States Constitution, Amendments, One, Four, Five and Fourteen, the New York Constitution and the Civil Rights Acts, 42 U.S.C. § 1981, 1983, 1986 and 1988, and the actions of the defendants were the result of either an official policy or an unofficial custom by Defendants, **THE CITY OF NEW YORK** and **NYPD**, including but not limited to policies and customs, concerning the hiring, training, supervision, retention and discipline of **THE CITY OF NEW YORK** and **NYPD's** agents, servants and/or employees, and those policies and custom involving the arrest, detention and prosecution of individuals, including and especially, those persons such as the plaintiff of certain ethnic group.

60. That the defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating misconduct against civilians in their custody.

61. That the defendants were deliberately indifferent to the use of improper procedures in the detention of civilians and established a policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by Defendant, NYPD.

62. That Defendants failed to adequately train, supervise and discipline their agents, employees and officers.

63. That the actions of the officer(s) who arrested and/or detained the plaintiff were undertaken under color of law and would not have occurred but for said defendants' use of their official power.

64. The defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his constitutional and civil rights.

65. The supervisors and policy making officers of Defendants, **THE CITY OF NEW YORK** and NYPD, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

66. The defendants have failed to properly and effectively train their agents, servants and/or employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

67. The defendants have sanctioned the policies and practices heretofore described through their deliberate indifference to the effect of such policies and practices upon the constitutional rights of the plaintiff and others similarly situated.

68. That the defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

69. By reason of the foregoing, the plaintiff has been damaged and suffered serious and severe injuries including emotional distress and emotional harm, as a result of these deprivations of constitutional and civil rights.

70. As a result of all of the foregoing, Defendants have become liable to the plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff demands judgment against defendants on all causes of action in an amount which exceeds the monetary jurisdiction of all lower courts, the costs and disbursements of this action and such further relief as the Court deems just and proper.

Dated: New York, New York
June 8, 2020

LAW OFFICE OF GLENN M. RACE



By: Glenn M. Race, Esq.
954 Lexington Avenue, #331
New York, New York 10021
Attorneys for Plaintiff:
MAXIM BANGIYEV
P: 888.875.1059
F: 888.887.0073

ATTORNEY VERIFICATION

STATE OF NEW YORK)
 : SS.
COUNTY OF NEW YORK)

I, Glenn M. Race, an attorney duly admitted to practice law in the State of New York, make the following affirmation under the penalties of perjury:

I am an attorney associated with the Law Office of Glenn M. Race, the attorneys of record for the plaintiff.

I have read the foregoing complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because plaintiff does not reside in the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
June 8, 2020


Glenn M. Race, Esq.